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U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
OFFICE OF FEDERAL OPERATIONS

Kevin D. Turnage, Appellant, v. Xavier Becerra, SECRETARY, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES Agency.	Appeal No. 2024004239 Agency Case No. HHS-IHS-0296-2023 December 4, 2024

AGENCY'S MOTION TO STRIKE

The Agency respectfully requests that the Commission strike from the record the briefs Appellant filed on November 19, 2024 and decline to consider those documents when deciding the merits of the above-captioned appeal.

I. PROCEDURAL BACKGROUND

In its initial acknowledgment letter dated July 12, 2024, the Commission acknowledged receipt of the above-captioned appeal, which Appellant filed through the EEOC Public Portal. In the initial acknowledgment letter, the Commission informed Appellant that he could submit a statement in support of his appeal by August 11, 2024. The Commission sent Appellant a second acknowledgment letter dated July 15, 2024 that again instructed Appellant of the August 11, 2024 deadline for the statement in support of his appeal.

The Commission's July 12, 2024 and July 15, 2024 acknowledgment letters (collectively "Acknowledgment Letters") explained that Appellant could request an extension if he needed more time to submit the supporting statement. The Acknowledgment Letters informed Appellant of the procedures for an extension request, including that any such request must be electronically submitted before August 11, 2024 and should describe why more time is needed.

Appellant did not file anything with the Commission on or before August 11, 2024.

On September 10, 2024, the Agency filed its brief in opposition to the appeal ("Agency's Brief") via the Federal Sector EEO Portal. That same day, Agency counsel emailed Appellant, who is an e-filer, a courtesy copy of the Agency's Brief. *See* Agency Exhibit 1.

More than two months later, on November 19, 2024, Appellant filed two supporting briefs, despite the Commission's instructions that any supporting statement be filed by August 11, 2024. The first brief, filed at 6:54 p.m., is titled "Appellant's Reply Brief in Support of Appeal" ("Appeal Brief"). The second brief, filed at 8:12 p.m., is titled "Appellant's Brief in Response to Agency Opposition" ("Reply Brief").

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II. ARGUMENT

1. Appellant's Briefs are Procedurally Improper and Should be Stricken from the Record.

The Commission should strike Appellant's November 19, 2024 briefs and should not consider them when deciding the merits of this appeal.

First, Appellant's Appeal Brief is untimely. The Commission's regulations make clear that any statement or brief in support of an appeal must be submitted to the Commission within 30 days of filing the notice of appeal. *See* 29 C.F.R. § 1614.403(d). Appellant's notice of appeal was filed on July 12, 2024, therefore the deadline for his statement in support of appeal was August 11, 2024.[1] Appellant was informed of this regulatory deadline. The Commission's Acknowledgment Letters thoroughly explained that Appellant needed to submit any statement in support of his appeal by August 11, 2024. However, Appellant did not file anything by August 11, 2024. Rather, he waited 100 days after the deadline to submit his Appeal Brief to the Commission. In doing so, Appellant did not seek permission to file his Appeal Brief out of time. In fact, Appellant fails to provide *any* reason for why he did not meet the August 11, 2024 deadline. Moreover, Appellant did not file the Appeal Brief until after the Agency filed its opposition to the appeal. Thus, Appellant's Appeal Brief should be stricken from the record.

Second, Appellant's Reply Brief is also procedurally improper. There is no provision in the Commission's regulations or the Acknowledgment Letters allowing Appellant to respond to the Agency's Brief. Nor did Appellant seek leave from the Commission to file additional briefing before he submitted the Reply Brief. Appellant seems to argue that because he did not

[1] Taking into account that August 11, 2024 was a Sunday, Appellant's statement in support of appeal was due on August 12, 2024. *See* 29 C.F.R. § 1614.604(g). However, this distinction is irrelevant here because Appellant's brief in support of appeal was filed well after the deadline.

see the Agency's Brief right away, that he must have a meaningful opportunity to respond to it. *See* Reply Brief at 3. Not so. Again, the regulations do not set forth a right to file a reply to the Agency's Brief and Appellant has not set forth any good cause reasons why a reply is necessary in this case.

Furthermore, Appellant did not file the Reply Brief until 70 days after the filing of the Agency's Brief. Appellant places the blame for this delay on the Agency, stating that an email regarding the Agency's Brief went to his spam folder and he did not discover it until October 18, 2024. *See* Reply Brief at 3. It is unclear if the email Appellant refers to was from the EEOC Public Portal notifying Appellant of the filing of the Agency's Brief or if it was the email from Agency counsel providing Appellant with a courtesy copy of the Agency's Brief. In any event, even if Appellant did not see an email notice regarding the Agency's Brief until October 18, 2024, Appellant had other means to identify if the Agency had filed an opposition statement. Specifically, Appellant had already been instructed in the Acknowledgment Letters that the Agency may submit an opposition statement and that Appellant could view the opposition using the EEOC Public Portal. Appellant does not state why he did not check the EEOC Public Portal to identify if an opposition had been filed nor does he argue that he was prevented or restricted from accessing the EEOC Public Portal.

For these reasons, the Commission should strike in whole Appellant's Appeal Brief and Reply Brief from the record.

2. Appellant Offers No Justification for the Inclusion of New Evidence.

In his Appeal Brief, Appellant for the first time introduces statistical information about Phoenix Indian Medical Center's ("PIMC") policy compliance rate for 2022. *See* Appeal Brief at 7-8.

"As a general rule, no new evidence will be considered on appeal unless there is an affirmative showing that the evidence was not reasonably available prior to or during the investigation." *See Sunday S. v. Dep't of Homeland Sec.*, EEOC Appeal No. 2019005172, 2020 WL 5657008, *3 (Sept. 3, 2020) (citing EEOC Management Directive 110 ("MD-110") Ch. 9 § VI.A.3). Appellant provides no justification for why the statistical evidence from 2022 was not raised during the investigative stage, which took place from June to August 2023. *See* Report of Investigation ("ROI") at 3. Additionally, Appellant does not explain the source of the statistical information, nor did he include copies of the evidence with his submission. As such, the new evidence should not be considered.[2]

3. Appellant Cannot Raise a New Claim on Appeal.

The regulations do not permit a complainant to raise a new claim on appeal. *See Hooker, Jr. v. Dep't of Veterans Affairs*, EEOC Appeal No. 05A50763, 2005 WL 1198527, *1 (May 13, 2005). Despite that limitation, Appellant references a new claim of harassment in his Appeal Brief and Reply Brief. Specifically, Appellant attempts to add to this case a separate hostile work environment claim against his subordinate, Nurse Greve. *See* Appeal Brief at 3, 5; Reply Brief at 2.

A separate claim of harassment against Nurse Greve was not raised in Appellant's formal complaint of discrimination, nor was it accepted by the Agency as a claim of discrimination or harassment.[3] *See* ROI at 24-28, 53. As such, the EEO investigator did not investigate that as a separate claim. If Appellant believed that the Agency did not correctly identify his claims, he

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[2] Even if Appellant's new statistical evidence were considered, it does not establish unlawful discrimination by the Agency. Appellant argues that his new evidence shows that PIMC had a low rate of compliance with local policies, and from that, it can be inferred that PIMC had a low compliance rate with its internal policies. *See* Appeal Brief at 7-8. This extenuated argument fails to show any discriminatory intent by the Agency.

[3] While Appellant asserts in his Appeal Brief that the claim is documented in the ROI, the citations he includes to the ROI do not support his assertion. *See* Appeal Brief at 3.

should have sought to amend his complaint prior to the conclusion of the investigation. *See Hooker, Jr.*, EEOC Appeal No. 05A50763, 2005 WL 1198527 at *1 (explaining that Commission regulations allow for a complainant to amend a complaint any time prior to the inclusion of the investigation to include issues or claims like or related to those raised in the complaint). He did not do so and, accordingly, there is no final agency action on any separate claim of harassment against Nurse Greve. For that reason, this claim is not properly within the scope of this appeal. *See* 29 C.F.R. § 1614.401(a); *see also Complainant v. U.S. Postal Serv.*, EEOC Appeal No. 0120141666, 2015 WL 1399434, *1 (Mar. 17, 2015) (explaining that an issue not raised in a formal complaint was not within the scope of appeal). Furthermore, while the Agency's Brief addresses events concerning Nurse Greve, that is only because some of Appellant's accepted claims tangentially involved Nurse Greve. *See e.g.*, Agency's Brief at 14 n.1, 19, 21-22.

At bottom, Appellant is attempting to add a new claim on appeal. *See Chadwick W. v. Soc. Sec. Admin.*, EEOC Appeal No. 2020003174, 2020 WL 6710358, *3 (Nov. 5, 2020) ("The Commission has held that it is not appropriate for a complainant to raise new claims for the first time on appeal."). "Therefore, even assuming arguendo that [Appellant's] new allegations of harassment are related to his instant claim, it would be inappropriate for the Commission to address these allegations on appeal." *Hooker, Jr.*, EEOC Appeal No. 05A50763, 2005 WL 1198527 at*1. Thus, the Commission should not consider this new claim of harassment.

4. New Issues Not Specifically Raised in Appellant's Notice of Appeal Should Not be Considered.

Appellant argues for the first time in his Reply Brief that the third-party EEO investigator provided incomplete and biased reports, and that the EEO investigator could not be neutral due to the contract with the Agency. *See* Reply Brief at 2-3. Appellant did not raise this issue in his

notice of appeal. The Commission should therefore exercise its discretion and not address the new issue. *See* MD-110 Ch. 9 § IV.A.3 (explaining that the Commission has the discretion to focus only on the issues specifically raised on appeal)**.**

5. Appellant's Request for Discovery During Appeal is Not Appropriate.

In his Reply Brief, Appellant requests discovery. *See* Reply Brief at 3-5. "Discovery is generally not available in the appellate process." *Woodrow F. v. Soc. Sec. Admin.*, EEOC Appeal No. 2019000121, 2019 WL 7603065, *3 (Dec. 19, 2019) (finding that appellate discovery was not appropriate); *see also Gerard M. v. Dep't of Veterans Affairs*, EEOC Appeal No. 0120182192, 2019 WL 2296648, *4 (May 7, 2019) ("Because Complainant did not request a hearing or avail himself of the discovery process which would have allowed for an examination of the credibility or lack thereof of management's explanations, we can only evaluate the facts based on the weight of the evidence presented to us."). Thus, Appellant's request for discovery should be denied.

III. CONCLUSION

For the foregoing reasons, the Commission should strike Appellant's Appeal Brief and Reply Brief. If the Commission denies the Agency's Motion to Strike, in part or in full, the Agency respectfully requests an opportunity to respond to Appellant's additional briefing.

Respectfully submitted,

PAULA R. LEE
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ANGELA BELGROVE
Deputy Chief Counsel

By: */s/ Kara Slack*
KARA SLACK

CERTIFICATE OF SERVICE

I hereby certify under penalty of perjury that I have caused a copy of the foregoing **AGENCY'S MOTION TO STRIKE** to be served upon the recipients listed below by the methods listed below this 4th day of December 2024.

EEOC
EEOC Office of Federal Operations
Served via FedSEP

Appellant
Kevin Turnage
kdturnage@gmail.com
Served via email and FedSEP

/*s/ Kara Slack*
Kara Slack
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From:	Slack, Kara (HHS/OGC)
To:	"kdturnage@gmail.com"
Subject:	Turnage v. Department of Health and Human Services (EEOC Appeal No. 2024004239)
Date:	Tuesday, September 10, 2024 3:31:00 PM
Attachments:	Turnage v. HHS - Opposition Statement (filed 9.10.24).pdf

Dear Mr. Turnage,

I am the attorney who represents the Department of Health and Human Services in your appeal that is currently pending before the EEOC Office of Federal Operations (Appeal No. 2024004239). I am writing to notify you that the Agency filed its brief in opposition to the appeal today and I have attached a courtesy copy of that filing here.

Sincerely,

Kara

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